

A motion for a new trial based on the first four grounds enumerated in the statute (irregularity in proceedings, jury misconduct, accident or surprise, and new evidence) must be made on affidavits. (Code Civ. Proc., § 658.) A motion based on one of the remaining grounds must be made on the minutes of the court. (*Id.*; *Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1192.) The “minutes of the court” include the records of the proceedings entered by the judge or courtroom clerk, showing what action was taken and the date it was taken, and may also include depositions and exhibits admitted into evidence and the trial transcript. (*Id.*)

Plaintiff’s first ground (i.e., irregularity of proceedings) fails because it must be made on affidavits and there is no timely affidavit filed.

Plaintiff’s second and third grounds (insufficiency of evidence and error of law) must be made on the minutes of the court. There are no minutes supporting the motion for new trial.

Finally, the court notes that Plaintiff is incorrect when arguing that “[a]s a self-represented litigant, Plaintiff’s filings are entitled to liberal construction.” (Reply Br., at p. 2, lines 18-19.) In support of the argument, Plaintiff cites to *Rappleyea v. Campbell* (1994) 8 Cal.4th 975 and *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826. *Rappleyea* make clear that self-represented litigants must comply with the same procedural requirements applicable to attorneys. (See *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984–985 [“we make clear that mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation.”].) *Aguilar* deals with the standards applicable with summary judgment motions and makes no mention of any leniency for a self-represented litigant.

In sum, the motion is DENIED.

Defendants to give notice.

9	Scott vs. Innovative Pain Treatment Solutions, LLC	<u>Motion to Dismiss Stakeholder</u> (Case Management Conference) 1. Motion to Dismiss The court CONTINUES Plaintiff KYLE SCOTT's motion to dismiss stakeholder to July 31, 2026, at 9:30 am in Department W08. Plaintiff filed this interpleader action and now moves for an order: (1) dismissing Plaintiff as stakeholder, (2) awarding \$3,174.70 in costs and \$8,875.00 in attorney's fees, and (3) permitting deposit of the remaining interpleaded funds of \$14,818.22 for Defendant BAHYA SIGAFOES and \$3,728.80 for Defendant CHERRY ANTOINE with the court. After filing the motion on 3/23/26, Plaintiff named F & M RADIOLOGY MEDICAL CENTER ("F&M") as Doe 2 on 4/16/26. A Proof of Service re Summons and Complaint was recently filed as to F&M, showing service of the summons and complaint and CMC notice on 4/22/26. (ROA 131.) As such, F&M's time to respond has not yet expired. Moreover, the proof of service does not show that F&M was served with the instant motion. As F&M may claim an interest in the interpleaded funds, the court finds additional notice is required before it will rule on the instant motion. Plaintiff SHALL immediately serve F & M Radiology Medical Center with the moving papers, if it has not already done so, and give notice of the continued hearing, including to F&M. Plaintiff shall file proof of service no later than nine (9) court days before the continued hearing date. Again, Plaintiff to give notice.